

26VECP00348 26VECP00348

County: los-angeles

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Tentative Ruling

Ocheret v. City of Los Angeles,

Case no. 26VECP00348

Hearing date August 31, 2026

Petitioner

Ocheret's Petition for Order to File Late Tort Claim Against Government Entity

Petitioner

Ocheret petitions for an order allowing her to file a late tort claim against a government entity, respondent City of Los Angeles, pursuant to Gov. Code §946.6. Respondent opposes.

Per

the Government Claim Act's claim-presentation requirements (Gov. Code §901, et seq.), a plaintiff cannot state a cause of action for damages against a public entity unless plaintiff presents a timely pre-litigation claim for damages or is excused from doing so. Gov. Code, §§945.4, 950.2; *State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1243. The deadline for presenting a claim for damages for personal injury is six months from accrual. Gov. Code §911.2(a). Under statutorily prescribed circumstances, a court may relieve a claimant of failure to timely present a claim. Gov. Code, §946.6. Petitioner has the burden of proving one or more of the grounds for relief. *N.G. v. County of San Diego* (2020) 59 Cal.App.5th 63, 72.

Petitioner

alleges she tripped and fell on a "pothole and/or cracked, uneven, misleveled,

and deteriorated roadway surface” at the intersection of Welby Way and Sales Avenue in West Hills on 6/16/25. Decl. L. Ocheret, para. 2. Petitioner sustained fractures of the left hand and elbow, requiring surgeries in September 2025, January 2026 and May 2026. Id., paras. 2-4.

The

six-month deadline to file a pre-litigation governmental tort claim ran 12/16/25. Petitioner filed a claim and an application for leave to present a late claim on 5/22/26, almost a year after her claim accrued. Decl. Downey, exh. 1. Respondent City denied the application on 6/5/26. Id. at exh. 2.

Petitioner

argues she was preoccupied with medical treatment and recovery, which caused her to delay consulting with a legal representative until May 2026. See Decl. L. Orcheret, para. 11. Petitioner argues she was reliant on her adult daughter’s support to manage day-to-day activities and was functionally physically and mentally incapacitated for purposes of Gov. Code §911.6(b)(4). Petitioner argues her circumstances, including her injuries and limited ability to communicate in English, establish mistake, inadvertence or excusable neglect, such that relief is warranted.

Respondent

City argues petitioner unreasonably delayed in applying for leave to present a late claim, delaying nearly a year. Courts have found unreasonable delay even where an application for leave to present a late claim was made within the one-year limit. See *Drummond v. County of Fresno* (1987) 193 Cal.App.3d 1406, 1411. Respondent argues the nearly one-year delay from claim accrual to application is unreasonable and asserts the five-month delay from 12/16/25 to 5/22/26 constitutes further unreasonable delay.

Petitioner

cites *Barragan v. County of Los Angeles* (2010) 184 Cal.App.4th 1373 for the premise that, where the claimant’s physical and/or mental condition sufficiently limits her ability to function and seek counsel such that the failure to do so could itself be considered the act of a reasonably prudent person under the same or similar circumstances, excusable neglect is established. Id. at 1385. Per *Barragan*, evidence or affidavits by petitioner may be sufficient to establish adequate cause for relief. Id. at 1382.

Petitioner

offered her declaration and the declaration of her adult daughter/primary caregiver, B. Ocheret. Petitioner experienced persistent pain and impaired sleep, took pain medications that affected her concentration, clarity, and energy, suffered limitations in performing ordinary activities of daily living, underwent unsuccessful conservative treatment followed by multiple surgical procedures and depended upon her daughter and family members for assistance with daily needs and medical care. See generally Decls. L. Ocheret, B. Ocheret.

Respondent

City does not dispute the severity of petitioner's injuries nor scope of her medical treatment and recovery. Rather, respondent City argues the severity of petitioner's condition does not constitute a sufficient basis to establish excusable neglect. While Barragan, supra, found an appellant who was rendered quadriplegic and had to relearn ADLs was entitled to relief from the tort claim time requirements, petitioner here fails to substantiate an analogous basis for relief.

Petitioner

failed to proffer affidavits from medical professionals as to her physical condition or limitations. Petitioner failed to offer details regarding the severity of her medical procedures or details regarding subsequent inpatient or outpatient treatment. Assertions of incapacity in a self-serving declaration are insufficient to find excusable neglect in this case.

Petitioner

must provide specific facts to establish the bases for the relief asserted. Dep't. of Water & Power v. Superior Court (Dzhibinyan) (2000) 82 Cal.App.4th 1288, 1293. "A superior court may properly deny relief under Government Code section 496.6 where there is simply no competent evidence before the trial court upon which it could exercise its discretion." Munoz v. State of California (1995) 33 Cal.App.4th 1767, 1783.

While

public policy generally favors resolution of claims on the merits, that policy cannot be applied indiscriminately to render the specific statutory time limits imposed by the Government Claims Act ineffective. Barragan, supra, at 1382.

The

issues faced by petitioner– significant injury, medical treatment, including surgery, and recovery allegedly preventing her from filing a claim within the statutory timeframe – are not unique. Under the facts presented, this does not establish excusable neglect nor a sufficient basis for relief from the requirements of filing a timely tort claim per Gov. Code 901, et seq. There is not sufficient evidence for the court to exercise its discretion in granting relief. DENIED.